

IN THE SUPREME COURT OF BANGLADESH
High Court Division
(Civil Revisional Jurisdiction)

Present:

Mr. Justice Md. Khairul Alam

Civil Revision No. 3467 of 2004.

Hare Krishna Halder.

... Defendant -Appellant-
Petitioner.

-Versus-

Surjya Kanta Dutta and others.

.... Plaintiffs-Respondents-
Opposite parties.

Mr. Sadananda Rana, Advocate.

..... For the petitioner.

None appears

..... For the Opposite parties.

Heard & Judgment on: 24.08.2022.

This Rule was issued calling upon the opposite parties No. 1-3 to show cause as to why the impugned order No.67 dated 27.04.204 passed by the learned Additional District Judge, Pirojpur in Title Appeal No. 103 of 1997, allowing an application in part filed by the petitioner under Order XVIII rule 17 of the Code of Civil Procedure to re-call DW-1, should not be set aside and/or pass such other or further order

or orders as to this court may seem fit and proper.

Facts relevant for disposal of the Rule are that the present opposite parties No. 1-3 as plaintiffs instituted Title Suit No. 107 of 1992 in the Court of Assistant Judge, Pirojpur Sadar, Pirojpur praying for declaration of title and partition in respect of the property as described in the schedule 'Kha' to the plaint; a further declaration that the auction sale as described in schedule 'Ga' to the plaint is forged, fraudulent, void, illegal and has created no right, title, possession in favour of the defendants No. 1, 5 and 9. Plaint case, in short, is that the suit land is the ancestral property of the plaintiffs, and at no point in time the same was sold in auction.

The present petitioner as defendant No. 1 contested the suit by filing a written statement denying the material averments made in the plaint contending, inter alia, that the suit land was put in auction for arrear rent in Certificate

Case No. 152 of 1962-63 and the defendants No. 1, 5 and 9 purchased the same. Since purchase, they are possessing the same by paying rent to the government after mutating the same in their name.

The defendant No. 2 and 3 also contested the suit by filing a separate written statement and prayed for saham to the extent of .024 acres of land of the suit khatian claiming themselves as the successive heirs of recorded tenants Kala Chand, Hari Charan and Narayan.

Subsequently, the said suit was transferred to the Court of Subordinate Judge, Second Court, Pirojpur for hearing.

The learned Subordinate Judge after the conclusion of the hearing of the suit decreed the same by the judgment and decree dated 12.08.1997.

Against the said judgment and decree, the present petitioner as appellant preferred Title Appeal No.103 of 1997 before the Court of District Judge, Pirojpur.

Ultimately, the appeal was transferred before the Court of Additional District Judge, Pirojpur for disposal.

In the said appeal, on 25.07.2001, the present petitioner filed an application under Order VI rule 17 along with section 151 of the Code of Civil Procedure for amendment of the written statement.

On 31.07.2004, the petitioner filed another application under Order XVIII rule 17 of the Code of Civil Procedure to recall DW-1 for cross-examination (examined on behalf of defendants No. 2-4).

The learned Additional District Judge by the order dated 27.04.2004 allowed the full prayer of the amendment application but allowed the application to recall DW-1 for cross-examination in part.

Being aggrieved thereby the petitioner moved before this Court and obtained the Rule and an order of stay.

Mr. Sadananda Rana, the learned Advocate appearing for the petitioner submits that the learned Additional District Judge committed an error of law resulting in an error in the decision occasioning failure of justice in passing the impugned order allowing the petition for recall in part. He further submits that the Court allowed the amendment application of the petitioner. After such amendment of the written statement, if the petitioner was not allowed to cross-examine the DW-1, examined before the amendment, the petitioner will be prejudiced seriously. He lastly submits that the learned Additional District Judge failed to consider that questions No.2 and 3 are relevant questions to put to DW-1 to remove the ambiguity of the suit.

No one appears to oppose the Rule.

Heard the learned Advocate for the petitioner, and perused the revisional application and other materials on record.

The subject matter of this Rule is recalling DW-1, already examined on behalf of defendants

No. 2-4 on 31.07.1997. From the materials on record, it appears that on 31.07.1997 i.e. 25 years ago, while DW 1 was examined he was 70 years old. On the query of the Court, the learned Advocate for the petitioner failed to ascertain whether D.W 1 is still alive or not.

Admittedly, on 25.07.2001 an application under Order VI rule 17 along with section 151 of the Code of Civil Procedure for amendment of the written statement of the petitioner, who was defendant No.1 of the suit, was allowed. Therefore, the petitioner pressed his application filed under Order XVIII rule 17 of the Code of Civil Procedure to recall DW-1, who was already examined on 31.07.1997 on behalf of defendants' No. 2-4, to cross-examine. After amending the written statement, the onus lies upon the petitioner to adduce evidence in defence of his amended written statement. But for the said cause of amendment of written statement recalling the witness of contending party to cross-examine, who was already examined, may not be a good cause for

recalling the witness under the provision of Order XVIII rule 17 of the Code of Civil procedure. Though the power under the rule is very wide and the Court can recall a witness at any stage of the suit if any ambiguity or omission is noticed. This power of the Court is discretionary but this discretion is to be used in accordance with law and not arbitrarily. Hence, the learned Additional District Judge, Pirojpur ought to have allowed the application or ought to have rejected the application. The learned Additional District Judge, Pirojpur by a non-speaking order allowed the application in part.

I have perused the application for recall and found that in the application the petitioner formulated 3 questions to put to DW 1. All the said 3 questions as formulated by the petitioner are pertinent and relevant for determining the issues that arose from the perspective of allowing the application for amendment of the written statement. All the said 3 questions are

interrelated and relevant to clear up the new facts as adduced by the amendment of the written statement. The learned Additional District Judge, Pirojpur by the impugned order only allowed the petitioner to put question No. 1 to D/W 1 and thereby rejected the prayer for putting questions No. 2 and 3 without assigning any reason, whatsoever, which is nothing but arbitrary.

Therefore, I am of the opinion that the learned Additional District Judge failed to exercise the discretion conferred upon it under Order XVIII rule 17 of the Code of Civil Procedure. The impugned order suffers from gross infirmities and in view of the matter, it cannot be sustained in law. In the above fact and circumstances, I find substance in this revisional application.

In the result, the Rule is made absolute without any order as to costs.

The impugned order No.67 dated 27.04.204 passed by the Additional District Judge, Pirojpur in Title Appeal No. 103 of 1997, allowing an

application in part filed by the petitioner under Order XVII rule 17 of the Code of Civil Procedure to re-call DW-1 for cross-examination is set aside.

The learned Additional District Judge, Pirojpur is hereby directed to allow the petitioner to recall and cross-examine D/W-1 in light of the application dated 31.03.24; subject to DW-1 is still alive.

The learned Additional District Judge, Pirojpur is hereby also directed to dispose of the appeal as early as possible.

The order of stay granted earlier by this court is hereby recalled and vacated.

Send a copy of this judgment to the concerned court at once.

Kashem, B.O